

9:00 AM

Line 5

25-CIV-07539 HAMID KHAZAELI VS. 21X CAPITAL LP, ET AL

HAMID KHAZAELI
21X CAPITAL LP

PRO SE
JOHN S. CLAASSEN

Plaintiff's (Amended) Motion for Leave to Conduct Limited (Specified) Discovery Pursuant to C.C.P. Section 425.16(g)

TENTATIVE RULING:

Plaintiff Hamid Khazaeli's Motion for Leave to Conduct Limited Discovery Pursuant to Code Civ. Proc. § 425.16, Subd. (g), is DENIED.

Plaintiff Hamid Khazaeli's request to strike the July 27, 2026 Declaration of John Claassen is DENIED. Plaintiff Hamid Khazaeli provides no authority in support of his contention that an error in the case number on a served paper warrants an order striking the paper.

When notice of a special motion to strike under Code of Civil Procedure section 425.16 is filed, all discovery proceedings are stayed. (Code Civ. Proc., § 425.16, subd. (g).) On a noticed motion and for good cause shown, a court may nonetheless exercise its discretion to allow specified discovery to be conducted. (*Ibid.*; *Balla v. Hall* (2021) 59 Cal.App.5th 652, 692.)

The party seeking the specified discovery bears the burden of demonstrating good cause, requiring the movant to "explain what additional facts he expects to uncover" and why the discovery is necessary. (*Sipple v. Foundation For Nat. Progress* (1999) 71 Cal.App.4th 226, 247.) The explanation must address the particular elements of the causes of actions or defenses at issue and show that the elements as to which discovery is being sought are likely be addressed in the ruling on the special motion to strike, such as by demonstrating that every other element of the cause of action or defense can be established. (See *The Garment Workers Center v. Superior Court* (2004) 117 Cal.App.4th 1156, 1162–1163.) In addition, to show that the discovery is necessary, the movant must demonstrate that the evidence cannot be obtained from other sources by specifying the particular reasonable attempts made to secure the information that have been unsuccessful. (See *Paterno v. Superior Court* (2008) 163 Cal.App.4th 1342, 1351, fn. 4.)

Here, Plaintiff fails to make the required showing. The motion fails to articulate or explain what evidence will show what facts to establish which elements of which causes of action. Instead, Plaintiff merely offers open-ended lists of topics to be discovered by documents requests and depositions without express connections to specified causes of action or defenses: for example, the motion states that, without discovery, "cannot establish (covered) employer, lack of protection under Civil Court section 1714.10 for all defendants, falsity, actual malice,

publication, breach, causation, knowledge, interference, damages, absence of privilege, lack of immunity, etc.” (May 25, 2026 Memorandum of Points & Authorities, p. 3. ll. 4–6; see also *id.*, at pp. 5–7 [multiple lists of areas of inquiry ending in ‘et cetera’].) Further, there is little distinction made between the thirteen defendants who have moved to strike and no showing that discovery from each is necessary.

Nor is there any explanation as to why these topics are relevant to disposition of the special motion to strike. That is, the motion for leave to conduct discovery does not show that any of these issues in particular are likely to be reached. For example, the issue of whether any particular defendant is a ‘covered’ employer—presumably meaning the Fair Employment and Housing Act applies to that defendant—is only relevant if any harassment, discrimination, or retaliation actually occurred, and the motion does not show these facts. This requires denial of the motion. (See *The Garment Workers Center, supra*, 117 Cal.App.4th at pp. 1162–1163 [error to permit discovery regarding malice element of libel without showing falsity element can be established].)

Finally, the motion also fails to show that the evidence sought cannot be obtained from other sources. Rather than explain what attempts have been made to secure relevant evidence from persons other than the thirteen defendants from whom discovery is sought, the declarations in support merely conclude that a diligent investigation was performed and that no evidence is available from Khazaeli’s own files or ‘a review’ from public records. (May 25, 2026 Declaration of Hamid Khazaeli, ¶¶ 6–7; Jul 31, 2026 Declaration of Hamid Khazaeli, ¶ 3.) Before seeking discovery, a movant must do more than look to *public* sources; third parties must be queried. (See *Paterno v. Superior Court, supra*, 163 Cal.App.4th at p. 1351, fn. 4.) The absence of an explanation is especially fatally given that many purported areas of inquiry *are* presumably available from other sources such as nonparty witnesses. (See, e.g., Jul 31, 2026 Declaration of Hamid Khazaeli, ¶ 5 [seeking information on damages from all defendants, which is presumably within Khazaeli’s *exclusive* knowledge as he is the plaintiff claiming such damages].) This independently requires denial of the motion.

Accordingly, the motion is DENIED.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If contested, parties may appear to argue the tentative ruling. The Court will then take the matter under submission, and the Court will prepare the Order after hearing.

9:00 AM

Line 6

25-CIV-09042 MEL SOLORIO VS. SBM MANAGEMENT SERVICE LP

MEL SOLORIO
SBM MANAGEMENT SERVICE LP

DANIEL GINZBERG
NICOLE BAARTS

Defendant's Motion to Compel Arbitration and Stay the Civil Action

TENTATIVE RULING:

For the reasons stated below, Defendant SBM Management Services, LP's ("SBM" or "Defendant") "Motion to Compel Arbitration and Stay the Civil Action," filed Jan. 16, 2026, is GRANTED. (Code Civ. Proc. § 1281.2, *et. seq.*; Federal Arbitration Act, 9 United States Code, § 1 *et seq.* ("FAA"). The case is HEREBY STAYED pending completion of the arbitration. (Code Civ. Proc. § 1281.4; 9 U.S.C. § 3.)

Defendant SBM's Jan. 16, 2026 Request for Judicial Notice ("RJN") is GRANTED as to Exhibit B (Evid. Code § 452(d) and as to Exhibit C (Evid. Code § 452(h).)

FACTS/BACKGROUND

In this employment dispute, Plaintiff Mel Solorio has sued his former employer, Defendant SBM, alleging wrongful termination and various violations of the California Labor Code. SBM has moved to compel arbitration, pursuant to an Arbitration Agreement that Plaintiff signed on May 1, 2019, prior to his starting working for SBM. Plaintiff opposes the Motion, arguing that the Arbitration Agreement is unconscionable, and therefore unenforceable.

DEFENDANT SBM HAS SHOWN THAT THE PARTIES ENTERED INTO AN ARBITRATION AGREEMENT THAT COVERS THE ASSERTED CLAIMS

Code Civ. Proc. § 1281.2, states, in part:

On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate that controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines that:

(a) The right to compel arbitration has been waived by the petitioner; or
